

		“A notice of motion to strike a portion of a pleading <u>must</u> quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Ct. rule 3.1322(a).) Here, the notice of motion fails to identify or number consecutively the portions of the pleading sought to be stricken. It is thus unclear what specific portions of the complaint Defendant seeks to strike. Case management conference is continued from 4/27/26 to 6/8/26 at 8:45am in Dept. C24. Plaintiff shall give notice.
211	<i>Kuljis vs. Pagalidis</i>	The Motion for Consolidation or Stay of Related Unlawful Detainer Action filed on 1/23/26 by Plaintiff Anthony Michael Kuljis (Kuljis) is GRANTED IN PART. Kuljis has adequately complied with Rule 3.350 of the California Rules of Court. (See ROA 52.) Kuljis has also demonstrated that title to the subject real property is a primary issue in dispute in both this action and in the unlawful detainer proceeding at issue here (<i>Pagalidis v. Kuljis</i>, OCSC Case No. 2025-01527283). Under these circumstances, it is appropriate for this Court to issue a stay for that unlawful detainer proceeding until the issue of title is resolved in this action, as a successful claim to title by Kuljis would defeat the claim by Eugenia Pagalidis (Pagaldis) as to the right to possession. (<i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367, 385.) However, Pagalidis is entitled to an order for payments to be made in the interim. (Code of Civ.

	Proc. § 1170.5, subd. (c).) Pagalidis has shown that there is a reasonable probability that she will prevail in the unlawful detainer proceeding at issue here. (ROA 64, Demetri Pagalidis Decl., ¶¶ 3-7.) She is thus entitled to an order requiring Kuljis to deposit into court the amount of rent that would have otherwise become due and payable until that unlawful detainer action is resolved. That sum has been identified in the unlawful detainer action as \$1,330 per month. Kuljis is therefore ordered to deposit that sum into court on the first of each month, in accordance with Code of Civ. Proc. § 1170.5, subd. (c), for so long as Kuljis remains in possession pending the termination of the unlawful detainer action. Kuljis' Request for Judicial Notice is GRANTED under Evidence Code § 452 subdivision (d), as to the existence of the record, but not as to the truth of any disputed facts asserted therein. Kuljis' Evidentiary Objections are SUSTAINED as to the Demetri Pagalidis Decl., at ¶ 4, as to the last 3 sentences [foundation], but otherwise OVERRULED. Court continues the 5/11/26 CMC to be heard concurrently with the 5/18/26 motion at 1:30pm in Dept. C24. Kuljis shall give notice.
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